

ESTATE OF KAREN HARVILLE

Case Number: 24PB-0032365

This matter is on calendar for hearing on an Amended First and Final Report on Waiver of Account and Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised.

As to the issue of statutory compensation, under the relief requested the Petition specifically states in direct reference to Probate Code § 10005: “If Petitioner is responsible for the loss on the reappraisal of the property...” The Court clarifies that Probate Code § 10005 specifically refers to the responsibilities and liabilities of the personal representative in the administration of the estate. The statute is a limitation on the representative's personal liability when estate property is sold, in accordance with the law, below its appraisal value. This has no effect on the calculation of statutory compensation. The Court is not making a finding as to the personal representative's personal liability to the estate for the loss on sales. Additionally, whether or not the Court takes into consideration the Reappraisal for Sale, the statutory compensation remains the same. The calculation for statutory compensation is clearly outlined in CRC 7.705 (Inventory and Appraisal + Receipts + Gains on Sale – Losses on Sale = Fee Basis). The Court notes the Petition incorrectly states the fee basis includes the subtraction of gains on sale. Using the original Inventory and Appraisal values, statutory compensation is still \$12,806.41.

The Petition is **GRANTED**, with statutory compensation awarded to the Personal Representative and Counsel in the sum of \$12,806.41. A proposed order has been lodged and will be executed by the Court. The order shall be modified, removing any statements regarding the Personal Representative's personal liability for the loss on sales. The previously set hearing of **Monday, August 18, 2025 at 2:30 p.m.** is VACATED. This matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF CAROLINE HYATT

Case Number: 24PB-0032304

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, September 29, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the September 29, 2025, date. **No appearance is necessary on today's calendar.**